

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
DAMIEN GUARNIERE,

SUMMONS

Plaintiff,

Index No.

-against-

Plaintiff Selects New York County as
Trial Venue Based on Locus of Injury

CITY OF NEW YORK, OSMAIRY CASTILLO
CHRISTIAN CAMPOS, TYLER BARBOUR,
RICHARD HORNBERGER and KATHLEEN WALSH,

Defendants.
-----X

TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
May 4, 2023

SIM & DEPAOLA LLP

Attorneys-at-Law

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Bayside, New York 11361
(718) 281-0400

By: /s/ Samuel C. DePaola
Samuel C. DePaola, Esq.
Attorney for Plaintiff

TO: CITY OF NEW YORK

Via Corporation Counsel of The City of New York
100 Church Street
New York, New York 10007

OSMAIRY CASTILLO, P.O. (Shield No. 8080)

CHRISTIAN CAMPOS, P.O. (Shield No. 10099)

TYLER BARBOUR, P.O. (Shield No. 8933)

RICHARD HORNBERGER, Sgt. (Shield No. 5084)

Via 19th Precinct
153 East 67th Street
New York, New York 10065

KATHLEEN WALSH, Deputy Chief (Tax Reg. No. 924832)

Via Lower Manhattan Security Initiative
One Police Plaza
New York, New York 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
DAMIEN GUARNIERE,

Plaintiff,

VERIFIED COMPLAINT

Index No.

-against-

CITY OF NEW YORK, OSMAIRY CASTILLO
CHRISTIAN CAMPOS, TYLER BARBOUR,
RICHARD HORNBERGER and KATHLEEN WALSH,

Defendants.
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Plaintiff, **Mr. DAMIEN GUARNIERE**, by and through the undersigned attorneys, **SIM & DEPAOLA LLP**, for his complaint against Defendants, **CITY OF NEW YORK, OSMAIRY CASTILLO, CHRISTIAN CAMPOS, TYLER BARBOUR, RICHARD HORNBERGER** and **KATHLEEN WALSH**, alleges and states, as follows:

1. This is a civil rights action, in which Plaintiff seeks relief and redress, vis-à-vis 42 U.S.C. §§ 1981, 1983, 1985, 1986 and 1988, for violations of his rights under the First, Fourth, Fifth, Sixth or Fourteenth Amendments, in addition to the laws of the City and State of New York.
2. The following claims arise from transactions or occurrences alleged to have transpired on May 16, 2020, at approximately 10:00 p.m., in the vicinity of 1633 Second Avenue, New York, New York, in which defendants, acting under color of state law, caused Plaintiff to be stopped, questioned, searched, detained and arrested without reasonable suspicion or probable cause.
3. Defendants then caused criminal proceedings to be initiated and maintained in the absence of probable cause to believe Plaintiff guilty or that such proceedings would succeed and engaged in the suppression of exculpatory facts or information and fabrication of evidence forwarded to prosecutors that was likely to influence a jury's decision.

4. Plaintiff was therefore maliciously prosecuted and denied rights to Fair Trial and Due Process of Law, until the criminal proceedings were terminated in favor of Plaintiff on, or about, June 25, 2020, when all adverse charges were summarily and unconditionally dismissed and sealed, upon consideration of the merits thereof, pursuant to CPL §§ 160.50 or 160.60.

5. As a result, Plaintiff was caused to sustain injuries, including loss of liberty, substantial physical pain and suffering, as well as emotional and psychological distress, which are continuing and believed to be permanent.

6. At all times, defendants were acting under color of state law, to wit, under color of laws, statutes, ordinances, regulations, policies, customs or usages of the City or State of New York.

7. Plaintiff timely served the City of New York, Office of the Comptroller, with a notice of claim, pursuant to GML § 50-I.

8. At least thirty (30) days have elapsed since the service of said notice, and adjustment or payment thereof has been neglected or refused.

9. Plaintiff seeks monetary damages (compensatory and punitive) against defendants, an award of costs and reasonable attorney's fees, plus all accrued interest, together with such other or further relief, as the Court may deem just and proper.

PARTIES

10. Plaintiff, Mr. Damien Guarniere ("Mr. Guarniere"), resides in New York, New York.

11. Defendant, City of New York ("City"), is a municipal corporation organized under the laws of the State of New York.

12. At all times relevant hereto, Defendant City, acting through the New York City Police Department ("NYPD"), was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, screening, hiring, training,

supervision, discipline, retention and conduct of all NYPD personnel, including police officers, detectives, investigators, sergeants, lieutenants and other supervisory officers or officials, as well as the individually named NYPD defendants herein.

13. At all times here relevant herein, Defendant City, was responsible for enforcing the rules or regulations of the NYPD, and for ensuring NYPD personnel obey the Constitution and the laws of the City and State of New York and of the United States.

14. At all times, Defendants, OSMARY CASTILLO (“CASTILLO”), CHRISTIAN CAMPOS (“CAMPOS”), TYLER BARBOUR (“BARBOUR”), RICHARD HORNBERGER (“HORNBERGER”) and KATHLEEN WALSH (“WALSH”), were police officers, detectives, sergeants, lieutenants, inspectors or other supervisory officers employed by the NYPD and were therefore acting as agents of Defendant City. Defendants CASTILLO, CAMPOS, BARBOUR, HORNBERGER and WALSH are being sued in their individual and official capacities.

15. At all times, defendants were acting under color of state law, to wit, under color of the laws, statutes, ordinances, rules, regulations, policies or customs of the City or State of New York.

FACTUAL CHARGES

16. On May 16, 2020, at approximately 10:00 p.m., Mr. Guarniere was in the vicinity of 1633 Second Avenue, within the County, City and State of New York.

17. Mr. Guarniere had not committed any crimes or violations of the law and had not been accused of such by any identified civilian witnesses.

18. At said date, time and place, Mr. Guarniere began to lawfully record the activities of various NYPD police officers, including Defendants CASTILLO, CAMPOS, BARBOUR, HORNBERGER and WALSH, with his cellular phone.

19. Despite recording defendants' activities without causing any disruption or obstruction, Mr. Guarniere was aggressively approached by defendants, including CASTILLO, CAMPOS, BARBOUR, HORNBERGER and WALSH, who demanded that Mr. Guarniere cease recording defendants' activities, while holding their arms outstretched toward Mr. Guarniere in a threatening and intimidating manner.

20. Defendants, including CASTILLO, CAMPOS, BARBOUR, HORNBERGER and WALSH, then unlawfully demanded that Mr. Guarniere produce his government issued identification, because said defendants were without any reasonable suspicion or probable cause to believe that Mr. Guarniere had committed any crime or violation of the law.

21. When Mr. Guarniere refused to produce his identification, defendants, including CASTILLO, CAMPOS, BARBOUR, HORNBERGER and WALSH, immediately struck Mr. Guarniere's hand, causing the beverage that he had recently purchased to fall to the ground.

22. Mr. Guarniere was unlawfully stopped, seized and arrested by defendants, including CASTILLO, CAMPOS, BARBOUR, HORNBERGER and WALSH, who grabbed Mr. Guarniere's body and arms to prevent him from moving, while informing him that he was under arrest, despite lacking any probable cause to believe that Mr. Guarniere had committed any crime or arrestable offense, including possession of an open container containing an alcoholic beverage in a public place in violation of § 10-125 of the Administrative Code of the City of New York.

23. Defendants, including CASTILLO, CAMPOS, BARBOUR, HORNBERGER and WALSH, lacked any probable cause or reasonable suspicion to stop, seize or arrest Mr. Guarniere, because defendants never confirmed or otherwise verified that the liquid within Mr. Guarniere's cup was, in fact, alcoholic in nature.

24. Defendants, including CASTILLO, CAMPOS, BARBOUR, HORNBERGER and WALSH, further lacked any probable cause or reasonable suspicion to stop, seize or arrest Mr. Guarniere, because defendants never confirmed or otherwise verified that the location on the sidewalk where Mr. Guarniere was imbibing his beverage was not within the premises or private property of any establishments “duly licensed for the sale and consumption of alcoholic beverages” and thus not defined as “a public place” by the subject statute, Section 10-125 of the Administrative Code of the City of New York, which does not prohibit the consumption of alcoholic beverages on the property or premises of establishments “duly licensed for the sale and consumption of alcoholic beverages.”

25. Defendants, including CASTILLO, CAMPOS, BARBOUR, HORNBERGER and WALSH, further lacked any probable cause or reasonable suspicion to stop, seize or arrest Mr. Guarniere, because defendants never confirmed or otherwise verified that the location on the sidewalk where Mr. Guarniere was imbibing his beverage was not part of “a block party, feast or similar function for which a permit has been obtained,” since the subject statute does not apply to such locations.

26. To contrary, however, the facts then known to defendants, including CASTILLO, CAMPOS, BARBOUR, HORNBERGER and WALSH, demonstrate that § 10-125 of the Administrative Code of the City of New York did not apply to the location where Mr. Guarniere was stopped and subjected to extreme force, because he was at all times present within the permissible area adjacent to the dining establishment that formerly owned and operated the building and premises upon which Plaintiff was falsely arrested and violently slammed head-first into the concrete.

27. Further, virtually all the local eating and drinking establishments were openly selling alcoholic beverages to the public in the immediate vicinity, within plain view of numerous police officers who permitted such activities to proceed without issue.

28. Accordingly, defendants, including CASTILLO, CAMPOS, BARBOUR, HORNBERGER and WALSH, created and permitted to continue an environment that would certainly result in the violation of New York City Administrative Code § § 10-125 by individuals who would not otherwise do engage in such behavior and therefore the police, including Defendants CASTILLO, CAMPOS, BARBOUR, HORNBERGER and WALSH were not prohibited by law from selectively enforcing the statute.

29. Defendants, including, CASTILLO, CAMPOS, BARBOUR, HORNBERGER and WALSH, then proceeded to illegally search Mr. Guarniere's person by rifling through clothing and pulling out his pockets, despite no indicia of secreted contraband or unlawful activity.

30. Defendants, including CASTILLO, CAMPOS, BARBOUR, HORNBERGER and WALSH, then violently contorted Mr. Guarniere's arms behind his back and proceeded to affix metal handcuffs to his wrists in an excessively tight fashion, which caused him to suffer substantial injury, pain and discomfort.

31. Defendants, including CASTILLO, CAMPOS, BARBOUR, HORNBERGER and WALSH, subjected Mr. Guarniere to further assaults and batteries when they lifted him from the ground before proceeding to forcibly slam him head-first into the concrete sidewalk while his hands were handcuffed behind his back, thus preventing him from bracing himself or protecting his head from the impending violent impact with the concrete ground, causing Mr. Guarniere to sustain numerous physical injuries and substantial pain to his head, brain, neck, back, chest, shoulders and ribs, as well as lose consciousness and suffer detrimental effects to his vision and

cognitive functioning abilities, with the loss of vision and cognitive dysfunctions still persisting and believed to be permanent.

32. Said application of excessive force constituted the completed torts of assault and battery by defendants, including CASTILLO, CAMPOS, BARBOUR, HORNBERGER and WALSH.

33. Due to the injuries inflicted upon Mr. Guarniere by defendants, including CASTILLO, CAMPOS, BARBOUR, HORNBERGER and WALSH, while still rear handcuffed in their custody and control, Mr. Guarniere was immediately rushed via ambulance from the scene of his wrongful arrest to Metropolitan Hospital, where he was treated for his myriad injuries.

34. Mr. Guarniere was involuntarily detained by defendants, including CASTILLO, CAMPOS, BARBOUR, HORNBERGER and WALSH, over the course of two (2) days, until his eventual release from custody on, or about, May 17, 2020.

35. Prior to being released from police custody, defendants, including CASTILLO, CAMPOS, BARBOUR, HORNBERGER and WALSH, issued Mr. Guarniere a criminal court summons, under Summons Number 4442209339, for violating § 10-125(b) of the Administrative Code of the City of New York.

36. Defendants, including, CASTILLO, CAMPOS, BARBOUR, HORNBERGER and WALSH, falsely accused Mr. Guarniere of violating § 10-125(b) of the Administrative Code of the City of New York, despite no actual evidence to support this unfounded allegation.

37. Defendants, including, CASTILLO, CAMPOS, BARBOUR, HORNBERGER and WALSH, fabricated fictitious events and occurrences, which were then falsely attributed to Mr. Guarniere, namely that Mr. Guarniere was observed to be in possession of an open container of alcohol in a public place, when defendants knew such observations to be complete fabrications.

38. Mr. Guarniere asserts that defendants, including CASTILLO, CAMPOS, BARBOUR, HORNBERGER and WALSH, falsely arrested, wrongfully detained and maliciously prosecuted him with the full knowledge that he had committed no crimes or violations of the law.

39. Mr. Guarniere, therefore, asserts that due to the clear absence of any viable probable cause to warrant his criminal prosecution, at any point, he was denied his rights to fair trial and due process and was maliciously prosecuted from the moment defendants, including CASTILLO, CAMPOS, BARBOUR, HORNBERGER and WALSH, issued him the summons for violating § 10-125(b) of the Administrative Code of the City of New York, until the summons proceedings were irrefutably terminated in Mr. Guarniere's favor, when the summons was dismissed, due to the lack of probable cause to believe that he was guilty or that the prosecution would succeed.

40. At all times relevant hereto, the defendants, including, CASTILLO, CAMPOS, BARBOUR, HORNBERGER and WALSH, were involved in the decision to stop, seize, arrest and prosecute Mr. Guarniere without reasonable suspicion or probable cause, or failed to intervene when they observed others doing so in the absence of any reasonable suspicion or probable cause.

41. At all times relevant hereto, the defendants, including, CASTILLO, CAMPOS, BARBOUR, HORNBERGER and WALSH, subjected Mr. Guarniere to excessive force, or failed to intervene when they observed others subjecting him to excessive force.

42. Mr. Guarniere asserts that the aforementioned unlawful acts committed by defendants are representative of the NYPD's pervasive policy, custom or pattern and practice of falsely arresting individuals for refusing to provide identification or recording the activities of police officers.

43. Defendants, including CASTILLO, CAMPOS, BARBOUR, HORNBERGER and WALSH, perpetrated multiple overt acts in furtherance of their obviously discriminatory

inclinations against Mr. Guarniere, namely stopping, assaulting, arresting and prosecuting Plaintiff in the absence of probable cause.

44. Defendants, including CASTILLO, CAMPOS, BARBOUR, HORNBERGER and WALSH, unlawfully stopped, questioned, searched, seized, arrested, and maliciously prosecuted Plaintiff, due solely to defendants' desire to prevent Mr. Guarniere from exerting his First Amendment right to engage in protected speech and activities, such as the recording of police officers' conduct, refusal of an unlawful request to provide identification to officers, the patronization of local establishments and the consumption of lawfully purchased beverages from said local establishments.

45. Defendants, including CASTILLO, CAMPOS, BARBOUR, HORNBERGER and WALSH, possessed no valid reason to approach, stop, question, search or arrest Plaintiff, which gives rise to the strong inference that such conduct resulted from defendants' unjust motivations or proclivities, including retaliation for Mr. Guarniere's act of recording police officers, including Defendants CASTILLO, CAMPOS, BARBOUR, HORNBERGER and WALSH.

46. Defendants, including CASTILLO, CAMPOS, BARBOUR, HORNBERGER and WALSH, subjected Mr. Guarniere to disparate treatment compared to other individuals similarly situated, because defendants did not stop, accuse, seize or arrest any of the other multiple pedestrians, who were engaged in activity identical to the kind that resulted in Plaintiff's illegal search and seizure, namely drinking from containers purchased from local establishments duly licensed for the sale and consumption of such.

47. Defendants, including CASTILLO, CAMPOS, BARBOUR, HORNBERGER and WALSH 1, engaged in a conspiracy to falsely arrest and maliciously prosecute Mr. Guarniere by personally conferring with each other, regarding the fabrication of the aforementioned nonexistent

evidence the suppression of exculpatory evidence, as well the manner and means by which said fabrications would be forwarded to prosecutors.

48. Mr. Guarniere asserts that defendants, including CASTILLO, CAMPOS, BARBOUR, HORNBERGER and WALSH, are part of a larger pattern and practice of similar misconduct, which is so widespread, pervasive and consistent throughout the NYPD that the commission of such behavior has become tantamount to an official policy or custom within the NYPD or, at the very least, conclusive evidence that the NYPD has either tacitly approved of such egregious wrongdoings or has become deliberately indifferent to the civil rights of those who may come into contact with its police officers.

49. The individually named defendants herein have blatantly, shamelessly, consistently and repeatedly engaged in conduct violative of the civil rights guaranteed and protected by Constitution of the United States, in addition to the laws and Constitution of the State of New York, without incurring any ramifications for such misconduct and with the full blessing of the NYPD.

50. *The New York Times*, as well as numerous other reputable journalistic enterprises, have reported on the widespread corruption within the NYPD, particularly the incredibly disconcerting proclivity of many NYPD officers to lie about subject matters that are materially relevant to criminal prosecutions, including the complete fabrication of arrest evidence and witnesses. Also detailed, is the NYPD's obstinate refusal to effectuate corrective or preventive measures to combat the inevitable recurrence of such misdeeds, and perhaps most troubling, the NYPD's alarming tendency to, instead, reward and promote these officers, including those who were inculcated via incontrovertible evidence, such as video evidence.

51. The constitutionally repugnant behavior that persists within the ranks of the NYPD results from the NYPD's own policies, rules and procedures, namely the NYPD's incredibly flawed and

illegal use of arrest quotas. Despite its illegality, such policies remain systemic throughout the NYPD and its individual commands. The NYPD, however, was not content in compelling its officers to effect as many arrests as possible, regardless of the presence of any legal right to do, it promulgated various subsets of quotas, which are predicated on race, color or ethnicity. Additionally, the NYPD would assign varying point values to arrests impermissibly based upon the arrestee's race, color or ethnicity. Unsurprisingly, officers would be better rewarded for minority arrests or summonses. This egregious conduct has reported by numerous respected media outlets and was the basis for lawsuits against the City by its own employee police officers.

52. On June 17, 2020, the *New York Daily News* published an article, by Graham Rayman, entitled "Brooklyn Cop Claims he was Punished for not Meeting Arrest Quotas, Refusing to Take Responsibility for Controversial Arrest in which he Wasn't Involved," describing allegations from an NYPD Police Officer, Terrence Dickerson, that he was retaliated against by the NYPD for refusing to adhere to mandatory racially based arrest quotas and for his refusal to accept responsibility for a controversial and publicized arrest via the excessive force, despite the fact that he was not even at the scene.

53. Another article published by the *New York Daily News*, on December 5, 2019, written by Graham Rayman, is entitled "Ex-Cop Details NYPD 'Collar Quotas'—Arrest Black and Hispanic Men, 'No Cuffs on Soft Targets' of Jews, Asians, Whites: Court Docs."

54. *The New York Times*, on December 6, 2019, published an article by Joseph Goldstein and Ashley Southall, entitled "I Got Tired of Hunting Black and Hispanic People," which revealed a disturbing account from a different NYPD Police Officer, Anthony Diaz, describing a police force that measures the quality of police work by the quantity of minority arrests.

55. On March 18, 2018, *The New York Times* published an explosive article, entitled “Promotions, Not Punishments for Officers Accused of Lying,” written by Joseph Goldstein. Mr. Goldstein shines a light on the multitude of flaws within the CCRB and the NYPD, highlighting the fact that the substantiation of a claim against an officer will invariably rely on the presence of incontrovertible proof against the officer. Due to the rarity availability of this type of evidence, an alarmingly small percentage of officer misconduct claims are substantiated. The CCRB is further handicapped by a terribly designed system that requires evidence of a virtually indisputable nature to substantiate any claim against an officer. The article details the NYPD’s persistent reluctance to investigate or discipline officers who lie and even posits that this reluctance is a significant cause of the lying pandemic within the NYPD. The article references various officers and detectives who were the subject of credible accusations relating to the officers’ intentionally false statements, with some allegations coming from federal and state judges.

56. On September 12, 2019, *The New York Times* published another article by Joseph Goldstein, entitled “Officers Said They Smelled Pot. The Judge Called Them Liars.” Unsurprisingly, this article dealt with the unusually high frequency of officers using the odor of marijuana to excuse a search that conspicuously does not result in the recovery of any marijuana. It should not require an article in *The New York Times* to call attention to such patently disingenuous tactics, but has become necessary for a variety of reasons, including the NYPD’s failure to correct such behavior, the willingness of prosecutors and judges to credit the lying officers and the increasing rate of occurrence.

57. On April 24, 2019, *The New York Times* published an article, entitled “Detective’s Lies Sent Three People to Prison, Prosecutors Charge,” by Sean Piccolo, detailing the lies of NYPD Second Grade Detective Joseph Franco and how those lies resulted in the imprisonment of at least

three innocent people. The article described how Det. Franco lied about observing drug transactions on at least three separate occasions, lies that were only uncovered through contradictory video evidence. Det. Franco's lies resulted in the innocent individuals each being sentenced to prison terms in excess of one-year.

58. Other articles include: (i) "Testilying' by Police: A Stubborn Problem.," by Joseph Goldstein, *The New York Times*, March 18, 2018; (ii) "New York Detective Charged with Faking Lineup Results," by Joseph Goldstein, *The New York Times*, February 17, 2018; (iii) "He Excelled as a Detective, Until Prosecutors Stopped Believing Him," by Joseph Goldstein, *The New York Times*, October 17, 2017; (iv) "Review Board Notes Rise in New York Police Officers' False Statement," by J. David Goodman, *The New York Times*, May 14, 2015; (v) "In Brooklyn Gun Cases, Suspicion Turns to the Police," by Stephanie Clifford, *The New York Times*, December 11, 2014; (vi) "Detective is Found Guilty of Planting Drugs," by Tim Stelloh, *The New York Times*, November 1, 2011; and (vii) "The Drugs? They Came from the Police," by Jim Dwyer, *The New York Times*, October 13, 2011.

59. The NYPD has a longstanding and ignominious record of failing to discipline its officers, or even entertaining allegations of wrongdoing against them. On June 26, 2019, *The New York Times* published an article, entitled "2,495 Reports of Police Bias. Not One Was Deemed Valid by the N.Y.P.D." This article reported that within the last five (5) years, almost 2,500 separate individuals have filed formal complaints with the NYPD alleging that an officer acted with bias toward them, with not even one being substantiated by the NYPD. Such a finding is plainly incredible and obviously the result of deliberately poor or nonexistent investigatory protocols. The report further impugned the NYPD's commitment to combat the prejudices and the biases exhibited by many of its officers.

60. Upon information and belief, the NYPD or its respective policymakers, officials or supervisors have imposed, tacitly approved or acquiesced to policies, customs, or patterns and practices within the NYPD that resulted in Mr. Guarniere's arrest without probable cause.

61. Upon information and belief, the NYPD or its respective policymakers or supervisors have failed to provide adequate training regarding the identification of probable cause, reasonable suspicion or the appropriate amount of force to be used.

62. Upon information and belief, the personnel files, records and disciplinary histories of the officer defendants will reveal a history of civil rights violations indicating they were unfit for employment as NYPD officers, or for employment in general, and that the probability of said defendants committing similar violations in the future was extremely high.

63. Upon information and belief, said personnel files, records and disciplinary histories will conclusively show that the NYPD were fully aware of defendants' past constitutional violations, the unacceptably high probability for the recurrence of similar transgressions, the unreasonably dangerous situations that were likely to result from their hiring or retention, as well as their unsuitability for employment as law enforcement officers, or for employment in general, and that the NYPD failed to engage in any preventive or corrective action intended to diminish the likelihood of recurrence for such violations.

64. Upon information and belief, the individually named defendants have combined to be named as defendants in numerous lawsuits alleging violations similar or identical to those alleged herein, which have resulted in no disciplinary or corrective action of any kind.

65. Upon information and belief, the NYPD has failed or refused to correct the predilections to engage in unconstitutional behavior or attempt to prevent the recurrence of such misconduct.

66. The above acts of defendants, including CASTILLO, CHRISTIAN CAMPOS, TYLER BARBOUR, RICHARD HORNBERGER and KATHLEEN WALSH, directly or proximately resulted in deprivations to Mr. Guarniere's civil rights, under the First, Fourth, Fifth, Sixth or Fourteenth Amendments and the laws of the City and State of New York.

67. As direct or proximate result, Mr. Guarniere was caused to suffer the loss of his liberty, irreparable reputational harm, loss of earnings or potential earnings, substantial and permanent physical injury, pain and suffering, as well as severe and permanent emotional distress, including fear, embarrassment, traumatization, frustration, extreme inconvenience and anxiety.

FIRST CAUSE OF ACTION

Unlawful Interference with Recording a Law Enforcement Activity Under New York State Law

68. The above paragraphs are here incorporated by reference as though fully set forth.

69. Plaintiff, while not under arrest or in the custody of a law enforcement official, was lawfully recording law enforcement activity without physically interfering with law enforcement activity or otherwise constituting a crime defined in the penal law involving obstructing governmental administration.

70. Defendants unlawfully interfered with Plaintiff's right to record law enforcement activity by threatening plaintiff for recording such activity, commanding Plaintiff to cease recording, stopping, seizing, searching, ticketing or arresting Plaintiff for recording, or unlawfully seizing property or instruments used by that person to record, unlawfully destroying, or seizing a recorded image, or copying such a recording without Plaintiff's consent or court approval.

71. Accordingly, Plaintiff's right to record law enforcement activities, pursuant to § 79-P of the New York Civil Rights Law, was violated by defendants.

72. Defendant City, as employer of the individual defendants, is responsible for their wrongdoings, under the doctrine of *respondeat superior*.

73. As a direct and proximate result of this unlawful conduct, Plaintiff sustained damages.

SECOND CAUSE OF ACTION
Free Speech Retaliation Claim Under
New York State Law

74. The above paragraphs are hereby incorporated by reference as though fully set forth.

75. Plaintiff engaged in protected speech or activities, pursuant to Article I § 8 of the Constitution of the State of New York.

76. Defendants were motivated or substantially caused to act in violation of Plaintiff's civil rights by the protected speech or activities of Plaintiff.

77. Defendants' retaliatory actions against Plaintiff resulted in the deprivation of liberty and initiation of criminal charges.

78. Defendants physically or procedurally prevented Plaintiff's further pursuit thereof or chilled Plaintiff's desire to participate or engage in such protected speech or activities.

79. Accordingly, defendants violated Plaintiff's rights under Art. I § 8 of the N.Y. Constitution.

80. Defendant City, as employer of the individual defendants, is responsible for their wrongdoings, under the doctrine of *respondeat superior*.

81. As a direct or proximate result of this unlawful conduct, Plaintiff sustained damages.

THIRD CAUSE OF ACTION
First Amendment Retaliation Claim Under
42 U.S.C. § 1983 *Against* Individual Defendants

82. The above paragraphs are hereby incorporated by reference as though fully set forth.

83. Plaintiff engaged in speech and activities protected by the First Amendment.

84. Defendants committed impermissible or unlawful actions against Plaintiff that were motivated or substantially caused by Plaintiff's constitutionally protected speech or activities.

85. Defendants' retaliatory actions resulted in Plaintiff's loss of liberty and the compulsory defense of a criminal prosecution initiated and maintained in the absence of probable cause.

86. Defendants' retaliatory actions adversely affected Plaintiff's protected speech or activities by physically or procedurally preventing him from further pursuing said protected speech or activities or chilling the desire to engage in such.

87. Accordingly, defendants violated Plaintiff's rights under the First Amendment.

88. As a direct or proximate result of this unlawful conduct, Plaintiff sustained damages.

FOURTH CAUSE OF ACTION
Unreasonable Search and Seizure Under
New York State Law

89. The above paragraphs are hereby incorporated by reference as though fully set forth.

90. Defendants subjected Plaintiff and his property to unreasonable searches or seizures without a valid warrant and in the absence of reasonable suspicion or probable cause.

91. Plaintiff was conscious and fully aware of the unreasonable searches and seizures.

92. Plaintiff did not consent to the unreasonable searches and seizures.

93. The unreasonable searches and seizures were not otherwise privileged.

94. Accordingly, defendants deprived Plaintiff of rights under Article I § 12 of the Constitution of the State of New York and Article II § 8 of the New York Civil Rights Law.

95. Defendant City, as employer of the individual defendants, is responsible for their wrongdoings, pursuant to the doctrine of *respondeat superior*.

96. As a direct or proximate result of this unlawful conduct, Plaintiff sustained damages.

FIFTH CAUSE OF ACTION
Unreasonable Search and Seizure Under
42 U.S.C. § 1983 *Against* Individual Defendants

97. The above paragraphs are here incorporated by reference as though fully set forth.

98. Defendants subjected Plaintiff and his property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

99. Plaintiff was conscious and fully aware of the unreasonable searches and seizures.

100. Plaintiff did not consent to the unreasonable searches or seizures.

101. The unreasonable searches and seizures were not otherwise privileged.

102. Accordingly, defendants violated Plaintiff's right to be free from unreasonable searches and seizures, pursuant to the Fourth Amendment to the United States Constitution.

103. As a direct or proximate result of this unlawful conduct, Plaintiff sustained damages.

SIXTH CAUSE OF ACTION

False Arrest and False Imprisonment Under
New York State Law

104. The above paragraphs are hereby incorporated by reference as though fully set forth.

105. Defendants caused Plaintiff to be arrested, imprisoned, confined and deprived of liberty without a valid warrant or probable cause therefor.

106. Plaintiff was conscious of the confinement.

107. Plaintiff did not consent to the confinement.

108. The arrest and imprisonment of Plaintiff were not otherwise privileged.

109. Defendant City, as employer of the individual defendants, is responsible for their wrongdoings, under the doctrine of *respondeat superior*.

110. As a direct or proximate result, Plaintiff sustained damages.

SEVENTH CAUSE OF ACTION

False Arrest and False Imprisonment Under
42 U.S.C. § 1983 *Against* Individual Defendants

111. The above paragraphs are here incorporated by reference as though fully set forth.

112. Defendants violated the Fourth and Fourteenth Amendments to the Constitution of the United States by wrongfully and illegally arresting, detaining and imprisoning Plaintiff in the absence of probable cause or a valid, judicially authorized warrant.

113. The wrongful, unjustifiable and unlawful apprehension, arrest, detention, and imprisonment of Plaintiff was carried out without a valid warrant or the consent of Plaintiff and without reasonable suspicion or probable cause to believe a crime or unlawful offense was committed, being committed or about to be committed.

114. At all relevant times, defendants forcibly apprehended, arrested and imprisoned Plaintiff.

115. As a direct or proximate result of this unlawful conduct, Plaintiff sustained damages.

EIGHTH CAUSE OF ACTION

Assault and Battery Under
New York State Law

116. The above paragraphs are here incorporated by reference as though fully set forth.

117. At all relevant times, defendants caused Plaintiff to fear for his physical wellbeing and safety and placed him in apprehension of immediate harmful or offensive touching.

118. Defendants engaged in and subjected Plaintiff to immediate harmful or offensive touching and battered him without consent or justification.

119. Due to the intentional, willful and unlawful acts of defendants, Plaintiff suffered damages.

120. Defendant City, as employer of the individual defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

121. As a direct or proximate result of this breach, Plaintiff sustained damages.

NINTH CAUSE OF ACTION

Excessive Force Under
42 U.S.C. § 1983 *Against* Individual Defendants

122. The above paragraphs are here incorporated by reference as though fully set forth.

123. Defendants violated Plaintiff's rights under the Fourth or Fourteenth Amendments, because they used unreasonable force without consent.

124. Defendants engaged in and subjected Plaintiff to immediate harmful or offensive touching and battered Plaintiff without consent.

125. As a direct or proximate result of this breach, Plaintiff sustained damages.

TENTH CAUSE OF ACTION

Malicious Prosecution Under
New York State Law

126. The above paragraphs are here incorporated by reference as though fully set forth.

127. Defendants initiated the prosecution against Plaintiff.

128. Defendants lacked probable cause to believe Plaintiff was guilty or that the prosecution would succeed.

129. Defendants acted with malice, which, in the absence of probable cause, may be inferred.

130. The prosecution terminated favorably when all charges were unconditionally dismissed and sealed, upon consideration of the merits thereof, pursuant to CPL §§ 160.50 or 160.60.

131. Due to the intentional, willful and unlawful acts of defendants, Plaintiff suffered damages.

132. Defendant City, as employer of the individual defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

133. As a direct or proximate result of this unlawful conduct, Plaintiff sustained damages.

ELEVENTH CAUSE OF ACTION

Malicious Prosecution Under
42 U.S.C. § 1983 *Against* Individual Defendants

134. The above paragraphs are here incorporated by reference as though fully set forth.

135. Defendants initiated the prosecution against Plaintiff.

136. Defendants lacked probable cause to believe Plaintiff was guilty or that the prosecution would succeed.

137. Defendants acted with malice which may be inferred in the absence of probable cause.

138. The prosecution terminated favorably when all charges were unconditionally dismissed and sealed, upon consideration of the merits thereof, under CPL §§ 160.50 or 160.60.

139. Accordingly, defendants violated Plaintiff's Fourth or Fourteenth Amendment rights.

140. As a direct or proximate result of this unlawful conduct, Plaintiff sustained damages.

TWELFTH CAUSE OF ACTION

Malicious Abuse of Process Under
New York State Law

141. The above paragraphs are here incorporated by reference as though fully set forth.

142. Defendants arrested, detained and caused a criminal prosecution to be initiated or maintained against Plaintiff to compel the compliance or forbearance of some act.

143. Defendants had no excuse or justification to forcibly detain or initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.

144. Defendants intended to inflict substantial harm upon Plaintiff.

145. Defendants acted in furtherance of a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.

146. Defendant City, as employer of the individual defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

147. As a direct or proximate result of this unlawful conduct, Plaintiff sustained damages.

THIRTEENTH CAUSE OF ACTION

Malicious Abuse of Process Under
42 U.S.C. § 1983 *Against* Individual Defendants

148. The above paragraphs are here incorporated by reference as though fully set forth.

149. Defendants arrested, detained and caused a criminal prosecution to be initiated or maintained against Plaintiff to compel the compliance or forbearance of some act.

150. Defendants had no excuse or justification to forcibly detain and initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.

151. Defendants intended to inflict substantial harm upon Plaintiff.

152. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.

153. Defendants therefore acted in violation of Plaintiff's rights under the Fourth or Fourteenth Amendments to the Constitution of the United States.

154. As a direct or proximate result of this unlawful conduct, Plaintiff sustained damages.

FOURTEENTH CAUSE OF ACTION

Denial of Rights to Fair Trial and Due Process of Law Under
New York State Law

155. The above paragraphs are here incorporated by reference as though fully set forth herein.

156. Defendants fabricated incriminatory evidence likely to influence a jury's decision.

157. Defendants forwarded fabricated evidence or false information to prosecutors.

158. Defendants' actions resulted in post-arraignment restrictions and deprivations upon Plaintiff's liberty and freedom of movement.

159. Accordingly, defendants violated Plaintiff's civil rights, under Article I §§ 1, 2, 6 and 9 of the New York Constitution, as well as Article II §§ 10 and 12 of the New York Civil Rights Law.

160. Defendant City, as employer of the individual defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

161. As a direct or proximate result of this unlawful conduct, Plaintiff sustained damages.

FIFTEENTH CAUSE OF ACTION

Denial of Rights to Fair Trial and Due Process of Law Under
42 U.S.C. § 1983 *Against* Individual Defendants

162. The above paragraphs are here incorporated by reference as though fully set forth.

163. Defendants fabricated evidence against Plaintiff likely to influence jury.

164. Defendants forwarded said false information to prosecutors.

165. Defendants' actions resulted in post-arraignment restrictions and deprivations upon Plaintiff's liberty and freedom of movement.

166. As such, defendants violated Plaintiff's rights under the Fifth and Fourteenth Amendments.

167. As a direct or proximate result of this unlawful conduct, Plaintiff sustained damages.

SIXTEENTH CAUSE OF ACTION

Violation of Victims of Violent Crime Protection Act Under New York City Law

168. The above paragraphs are here incorporated by reference as though fully set forth.

169. Defendants committed acts or a series of acts that constituted a misdemeanor or felony against Plaintiff, as defined in state or federal law, which presented a serious risk of physical injury to Plaintiff, whether or not such acts resulted in criminal charges, prosecution or conviction.

170. As such, defendants violated § 10-403 of the Administrative Code of the City of New York.

171. Defendant City, as employer of the individual defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

172. As a direct and proximate result of this unlawful conduct, Plaintiff sustained damages.

SEVENTEENTH CAUSE OF ACTION

Biased Based Profiling Under New York City Law

173. The above paragraphs are here incorporated by reference as though fully set forth.

174. Defendants impermissibly relied upon Plaintiff's actual or perceived race, color, national origin, ancestry, citizenship status, gender, religion, religious practice, age, disability or sexual orientation, as the determinative factor in initiating law enforcement action against Plaintiff, rather than Plaintiff's behavior or other information or circumstances that indicative of unlawful activity.

175. Accordingly, defendants violated Plaintiff's rights under § 14-151 of the Administrative Code

of the City of New York.

176. Defendant City, as employer of the individual defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

177. As a direct or proximate result of this unlawful conduct, Plaintiff sustained damages.

EIGHTEENTH CAUSE OF ACTION

Deprivation of Rights and Denial of Equal Protection of Law Under
New York State Law

178. The above paragraphs are here incorporated by reference as though fully set forth herein.

179. Defendants discriminated against Plaintiff on the basis of race, skin color, national origin, ancestry, gender, religion, religious practice, age, disability or sexual orientation.

180. Defendants selectively treated Plaintiff relative to others similarly situated.

181. Defendants' discriminatory treatment of Plaintiff was based on impermissible considerations, such as race, color, ethnicity, an intent to inhibit or punish Plaintiff for the exertion of his Constitutional rights, or a malicious or bad faith intent to injure Plaintiff.

182. Defendants applied facially neutral laws, statutes, rules, regulations or ordinances against Plaintiff in a discriminatory manner.

183. Defendants, motivated by discriminatory animus, applied facially neutral statutes with adverse effects against Plaintiff.

184. Defendants did not possess a rational basis, excuse or justification for applying any laws, statutes, rules, regulations or ordinances against Plaintiff.

185. Accordingly, defendants violated Plaintiff's rights, pursuant to Article I § 11 of the Constitution of the State of New York, Article VII § 79-N of the New York Civil Rights Law and § 296, ¶ 13, of the New York Human Rights Law.

186. Defendant City, as employer of the individual defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

187. As a direct or proximate result of this unlawful conduct, Plaintiff sustained damages.

NINETEENTH CAUSE OF ACTION

Deprivation of Rights and Denial of Equal Protection of Law Under
42 U.S.C. §§ 1981 and 1983 *Against* Individual Defendants

188. The above paragraphs are here incorporated by reference as though fully set forth.

189. Defendants discriminated against Plaintiff on the basis of race, skin color or ethnicity.

190. Defendants selectively treated Plaintiff relative to others similarly situated.

191. Defendants' selective treatment of Plaintiff was based on impermissible considerations, such as race, color, ethnicity, an intent to inhibit or punish Plaintiff for the exertion of his Constitutional rights, or malicious or bad faith intent to injure Plaintiff.

192. Defendants applied facially neutral laws against Plaintiff in a discriminatory manner.

193. Defendants, motivated by a discriminatory animus, applied facially neutral penal statutes with adverse effects against Plaintiff.

194. Defendants lacked a rational basis, excuse or justification to apply said laws against Plaintiff.

195. Accordingly, defendants violated Plaintiff's rights, under the Fourteenth Amendment.

196. As a direct or proximate result of this unlawful conduct, Plaintiff sustained damages.

TWENTIETH CAUSE OF ACTION

Conspiracy to Interfere with Civil Rights and Failure to Prevent the Conspiracy Under
42 U.S.C. §§ 1983, 1985 and 1986 *Against* Individual Defendants

197. The above paragraphs are here incorporated by reference as though fully set forth.

198. Defendants engaged in a conspiracy against Plaintiff to deprive Plaintiff of his rights to engage in protected speech or activities, to be free from unreasonable searches and seizures, to a Fair Trial and not be deprived of liberty or property without Due Process of Law, or Plaintiff's entitlement to the privileges and immunities under the laws and Constitution of the United States.

199. Defendants committed overt acts in furtherance of their conspiracy against Plaintiff.

200. As a result, Plaintiff sustained injuries to his person, was deprived of his liberty or was deprived of rights or privileges afforded to citizens of the United States.

201. Defendants were motivated by a desire to deprive Plaintiff of his civil rights or because of some racial, otherwise class-based, invidious or discriminatory animus.

202. The defendants that did not engage or participate in the conspiracy to interfere with Plaintiff's civil rights, had knowledge that acts in furtherance of the conspiracy were about to be committed or in process of being committed, possessed the power to prevent or aid in the prevention of the conspiratorial objective, and neglected to do so.

203. Accordingly, defendants violated Plaintiff's rights, pursuant to the First, Fourth, Fifth, Sixth or Fourteenth Amendments to the Constitution of the United States.

204. As a direct or proximate result of this unlawful conduct, Plaintiff sustained damages.

TWENTY-FIRST CAUSE OF ACTION

Failure to Intervene Under
New York State Law

205. The above paragraphs are hereby incorporated by reference, as though fully set forth.

206. Those defendants that were present but did not actively participate in the unlawful conduct, observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.

207. Defendant City, as employer of the individual defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

208. As a direct or proximate result of this unlawful conduct, Plaintiff sustained damages.

TWENTY-SECOND CAUSE OF ACTION

Failure to Intervene Under
42 U.S.C. § 1983 *Against* Individual Defendants

209. The above paragraphs are here incorporated by reference as though fully set forth.
210. Those defendants that were present but did not actively participate in the unlawful conduct, observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.
211. Accordingly, defendants violated the Fourth and Fourteenth Amendments.
212. As a direct or proximate result of this unlawful conduct, Plaintiff sustained damages.

TWENTY-THIRD CAUSE OF ACTION

Negligent Hiring, Training, Retention and Supervision Under
New York State Law

213. The above paragraphs are hereby incorporated by reference, as though fully set forth.
214. Defendant City owed a duty of care to Plaintiff to adequately hire, train, retain and supervise its employee defendants.
215. Defendant City breached those duties of care.
216. Defendant City placed defendants in a position where they could inflict foreseeable harm.
217. Defendant City knew or should have known of its employees' propensity for committing civil rights violations.
218. Defendant City failed to take reasonable measures in hiring, training, retaining and supervising its employee defendants that would have prevented the aforesaid injuries to Plaintiff.
219. As a direct or proximate result of this unlawful conduct, Plaintiff sustained damages.

TWENTY-FOURTH CAUSE OF ACTION

Municipal "*Monell*" Liability Under
42 U.S.C. § 1983 *Against* Defendant City

220. The above paragraphs are here incorporated by reference as though fully set forth.

221. Defendant City maintained a policy or custom that caused Plaintiff to be deprived of his civil rights, tacitly approved of such violative conduct or was deliberately indifferent toward the potential exposure of individuals, such as Plaintiff, to such violative behavior.

222. Defendant City's employee police officers have engaged in an illegal pattern and practice of misconduct, so consistent and widespread that it constitutes a custom or usage, of which a supervisor or policymaker must have been aware of.

223. Defendant City, its policymakers and supervisors failed to provide adequate training or supervision to employee officers.

224. The individual defendants engaged in such egregious and flagrant violations of civil rights that the need for enhanced training or supervision is obvious.

225. Defendant City has failed or refused apply corrective or disciplinary measures to prevent the recurrence of civil rights violations.

226. Defendant City therefore violated Plaintiff's rights under the First, Fourth, Fifth, Sixth or Fourteenth Amendments.

227. As a direct or proximate result, Plaintiff sustained the damages hereinbefore alleged.

WHEREFORE, Plaintiff respectfully requests judgment against Defendants, jointly and severally, as follows:

a) On the First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;

b) On the Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;

c) On the Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;

- d) On the Fourth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;
- e) On the Fifth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;
- f) On the Sixth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;
- g) On the Seventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- h) On the Eighth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;
- i) On the Ninth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;
- j) On the Tenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;
- k) On the Eleventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;
- l) On the Twelfth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;
- m) On the Thirteenth Cause of Action, in a sum of money having a present value exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction;
- n) On the Fourteenth Cause of Action, in a sum of money having a present value exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction

- o) On the Fifteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;
- p) On the Sixteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;
- q) On the Seventeenth Cause of Action, in a sum of money having a present value exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction;
- r) On the Eighteenth Cause of Action, in a sum of money having a present value exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction;
- s) On the Nineteenth Cause of Action, in a sum of money having a present value exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction;
- t) On the Twentieth Cause of Action, in a sum of money having a present value exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction;
- u) On the Twenty-First Cause of Action, in a sum of money having a present value exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction;
- v) On the Twenty-Second Cause of Action, in a sum of money exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- w) On the Twenty-Third Cause of Action, in a sum of money exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- x) On the Twenty-Fourth Cause of Action, in a sum of money exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- y) Awarding Plaintiff punitive damages in an amount to be determined by a jury;
- z) Awarding Plaintiff attorney's fees and costs, under 42 U.S.C. § 1988 and all applicable state or local laws; together with the costs and disbursements of this action plus all accrued interest.

JURY DEMAND

Plaintiff hereby demands a trial by jury.

Dated: Bayside, New York
May 4, 2023

SIM & DEPAOLA LLP

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Bayside, New York 11361
(718) 281-0400

By: /s/ Samuel C. DePaola
Samuel C. DePaola, Esq.
Attorney for Plaintiff

ATTORNEY VERIFICATION

I, Samuel C. DePaola, an attorney admitted to practice in the courts of New York State, state that I am a partner of **SIM & DEPAOLA LLP**, the attorneys of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. This verification is made by me and not by Plaintiff, because Plaintiff resides outside the county where deponent maintains his office. I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
May 4, 2023

/s/ Samuel C. DePaola
Samuel C. DePaola, Esq.